



August 7th 2017 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=XygMAK5a6kY
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Delaware County Commissioners Meeting Report

Meeting Date: August 7, 2017

Report Format: Comprehensive Municipal Meeting Summary

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing on an Application for Assignment of Tax Sale Certificates to a Non-Profit Corporation [00:00:46](#)
- **Summary of Discussion:** Douglas Howard (President of the non-profit organization and resident at 3707 East Wilson Road) presented a request regarding property given to the non-profit that had previously gone through tax sales. The organization plans to use the property as a small business incubator, relocating two existing entities (Ashbury Florists and a pet grooming service), operating a garden center under a covered roof, and potentially providing space for other small businesses to lease. Board members questioned the ownership history, noting the property was not currently in the non-profit's name, that it had been acquired via a tax sale buyer three years prior, and that no property taxes had been paid during that time due to confusion over the validity of the tax sales. Board members also noted that the filing for non-profit status occurred relatively recently (January). Following discussion, the board voted to table the resolution.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Monday, August 7, 2017.
 - **Attendance:**
 - Presiding Officer / Board Members identified in roll calls: Mr. Henry, Ms. Riggan, Mr. King, and Steve Navarro (Board Clerk/Attorney).
 - Members Absent: None explicitly stated.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening prayer followed by the Pledge of Allegiance.
 - **Approval of Minutes:**
 - **Item Identifier:** Approval of Minutes for July 17, 2017 [00:24:24](#)
 - **Action & Vote Disposition:** Approved by Voice Vote (Roll call recorded affirmative votes from Ms. Riggan, Mr. Henry, and Mr. King).
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4. Substantive Business & Board Action

- [00:08:48](#) **Appointments: Civic Center Authority Board**
 - **Sponsor / Presenter:** Board Commissioners / Nominating process.
 - **Deliberation Summary:** The board considered two open positions on the Civic Center Authority Board and moved to nominate Scott Alexander. Public comment was offered by Karim Algo ([00:07:36](#), 7501 West County Road 750 North, Gaston, IN), who asked about the term length (two-year term starting July) and potential conflicts of interest given his businesses (The Outfitter and Barking Cow) do business with the Verizon Convention Center (\$400<U+2013>\$500 annually). Board advised him to fill out a conflict of interest form.
 - **Item-Specific Public Input:** Karim Algo regarding board oversight and business dealings with the convention center.
 - **Action & Vote Disposition:** Approved Unanimously by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).
- [00:11:39](#) **Table Business: Personal Property Taxes Collection & Ordinance No. 2017-017A**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Review of tabled business regarding personal property taxes collection and Ordinance No. 2017-017A (amending section 181 of the Delaware County code regarding copying).

- **Action & Vote Disposition:** Motion to keep both items tabled. Approved by Roll Call Vote (Ms. Riggan, Mr. Henry, Mr. King voting yes).
- **00:12:39 Presentation & Professional Services Agreement: American Structure Point**
 - **Sponsor / Presenter:** Andrew Robert Hart, Principal Consultant.
 - **Deliberation Summary:** Presented a proposal for a comprehensive, deep-dive IT assessment of county systems, hardware, software, licenses, and budgets. The review evaluates current practices against similar-sized communities, generates system diagrams with color-coded trouble spots, and delivers an executive summary and project plans within approximately 90 days. The projected cost is billed based on hours expended, not to exceed \$25,000. Commissioners expressed strong support given the county has lacked an IT audit for years.
 - **Action & Vote Disposition:** The contract was requested to be forwarded to the county attorney for review prior to final execution.
- **00:18:51 Agreement: Delaware County Board of Commissioners and Crowe Horwath**
 - **Sponsor / Presenter:** Board Commissioners / Staff.
 - **Deliberation Summary:** Consideration of an agreement for professional services regarding an audit and evaluation of expenditures for the Delaware County Regional Water and Sewer District. The estimated cost is between \$19,500 and \$25,000. Commissioners noted a misprint in the proposal containing the phrase "rate increase" and instructed that all instances of "rate increase" be stricken to leave solely an "evaluation of proposed rate."
 - **Action & Vote Disposition:** Approved with amendments to remove references to rate increases by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).
- **02:01:00 Plat Approval: Ashton Land Surveyors**
 - **Sponsor / Presenter:** Representative from Ashton Land Surveyors (325 West Washington Street) **02:03:00.**
 - **Deliberation Summary:** Presentation of a one-lot administrative subdivision requiring the dedication of a 25-foot road right-of-way to the county per ordinance requirements.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Ms. Riggan, Mr. Henry, Mr. King voting yes).
- **02:13:00 Agreement for Professional Services: CHA Consulting (Bridge 169)**
 - **Sponsor / Presenter:** County staff and Trevor, Environmental Planner with CHA Consulting.
 - **Deliberation Summary:** Agreement to cover professional services for alternative analysis and NEPA (National Environmental Policy Act) compliance documents for Bridge 169, following the discontinuation of a previous contract with HW Engineering. The contract is not to exceed \$184,400. Commissioners inquired about recouping past work, and CHA confirmed they will utilize existing alternative data where applicable.

- **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry, Mr. King voting yes).
- **02:26:00 Agreement for Professional Services: Lachniet Law Group / Bridge Inspections**
 - **Sponsor / Presenter:** County staff / Inspector.
 - **Deliberation Summary:** Agreement covering inspection services for small structures (under 20 feet, ranging from 6 feet to 20 feet) using a mobile GIS app for field inspectors. The four-phase project is not to exceed \$50,000 per year for four years.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).
- **02:27:25 Right-of-Way Acquisitions & Easements (Bridges 140, 141, and 226)**
 - **Sponsor / Presenter:** County staff / Legal.
 - **Deliberation Summary:** Acquisition and temporary highway easement grants for specific bridge projects:
 - Bridge 140 (Tiger Drive): Humber and Steven J. Humber, and Henry and Sheila Belfrage.
 - Bridge 141: Henry and Sheila Belfrage.
 - Bridge 226: James Eddie Terry.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).
- **02:28:42 Equipment Lease Purchase Agreement: Delaware County Sheriff's Department**
 - **Sponsor / Presenter:** Financial Manager, Sheriff's Department.
 - **Deliberation Summary:** Formal paperwork for the purchase/lease of a 2017 Ford Explorer (ready for pickup on Wednesday).
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).
- **02:30:08 Resolution No. 2017-033: Establishing the 69/28 Gas and Economic Development Area**
 - **Sponsor / Presenter:** Brad Lookout, Delaware County Economic Development.
 - **Deliberation Summary:** Establishment of the economic development area following prior discussion.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Nicole R. Written, Mr. Henry, Mr. King voting yes).
- **02:30:13 Resolution No. 2017-034: Tabled Business**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Motion to table Resolution No. 2017-034.
 - **Action & Vote Disposition:** Approved to table by Roll Call Vote (Mr. Henry, Mr. King voting yes).

- **02:30:35 Resolution No. 2017-035: Transferring Property to Muncie Redevelopment Commission**
 - **Sponsor / Presenter:** Representative of Muncie Redevelopment Commission.
 - **Deliberation Summary:** Request to transfer county-owned property at 609 Calvert to the Muncie Redevelopment Commission. The property is adjacent to 605 Calvert (demolished via hard-hit funds) and near 1520 Calvert, intended to create a side lot or facilitate future housing development (potentially partnering with Habitat for Humanity or a private developer).
 - **Action & Vote Disposition:** Motion to table for further review before moving forward. Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes). To return at the next meeting.
 - **02:32:32 Resolution No. 2017-036: Tax Sale Certificate Assignment to Non-Profit**
 - **Sponsor / Presenter:** East Central Indiana Regional Planning District.
 - **Deliberation Summary:** Resolution identifying a tax sale certificate to be assigned to a non-profit corporation regarding the CEO CR3 tire facility property. Contact was attempted with previous parties with no response. Two businesses are currently interested in the property.
 - **Action & Vote Disposition:** Approved by Roll Call Vote (Ms. Riggan, Mr. Henry, Mr. King voting yes).
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5. Open Public Comment / Citizen Forum

- *Note: General public comments and organizational forum remarks were integrated into specific agenda items (such as Karim Algo during the Civic Center appointments) and departmental reports rather than a standalone citizen forum block.*
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6. Administrative Updates & Adjournment

- **Staff & Board Announcements / Department Reports:**
 - **Veterans Affairs Office:** Commissioners commended the dedicated Veterans Affairs office, highlighting a glowing letter of appreciation from a deceased marine's widow (Pay Buchanan) praising staff assistance, veterans drug court coordination, and office accessibility. Discussion ensued regarding publicizing appointment schedules and updating the county website.
 - **9-1-1 Center Communications:** Commissioners discussed a letter to the Mayor of Muncie regarding termination/updates to standard local agreements, adding an additional board seat to represent emergency services (clarifying dual roles held by Jason Rogers for EMA and EMS), and stating the county will not pay legal fees for independent attorney hiring by the 9-1-1 board. Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).

- **Delaware County EMS Operations & Response Times:** Commissioners addressed a press release and public inquiries regarding the City of Muncie potentially exploring an alternative ambulance service. Jason Rogers (EMS/EMA) presented data showing Delaware County EMS operates three stations within Center Township (and others countywide) with an average response time of approximately 5 minutes (well below the national NFPA 1710 standard of 8 minutes for ALS). Commissioners emphasized the high quality of the county's EMS service, noting it serves as a statewide model, and authorized sending an inquiry letter to the Mayor to protect employee job security and clarify dispatch logistics. Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes). Comparative data for second-class cities (Bloomington, Lafayette, Kokomo utilizing hospital-based services) was entered into the record.
- **Claims & Warrants:** Payment of claims totaling **\$1,531,489.35** presented by Weights and Measures. Approved by Roll Call Vote (Mr. Henry, Ms. Riggan, Mr. King voting yes).
- **Adjournment:**
 - Motion to recess/adjourn made and seconded by Mr. Navarro, Ms. Riggan, and Mr. Henry. Approved by Voice Vote.

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